

	AREA	TOR	Management Committee
	POLICY	012	Terms of Reference
	OWNERS	Management Committee	
	AFFECTS	Management Committee	

TOR-012 | Management Committee

PREAMBLE, SCOPE & MANDATE

1. The Management Committee oversees operational and Human Resource matters at the University of Toronto Students' Union (UTSU), as outlined in Article 1, Section 1.8 of the UTSU Bylaws, along with daily operations for the UTSU and Student Commons. The Management Committee is accountable to the Board of Directors, providing regular reports on its activities and decisions.
2. In addition to these responsibilities, the Management Committee is charged with the oversight of any potential risks or liabilities that may arise within the organization, ensuring that all necessary precautions are taken to protect the UTSU's interests.
3. The Management Committee ensures alignment with UTSU priorities and interests when overseeing decisions made across all levels of the organization. As the primary point of contact for organization-wide decisions, the committee provides essential context and background on matters affecting the UTSU and the Student Commons to inform relevant committees so that they may make informed decisions.
4. The Management Committee is authorized to make decisions on behalf of the organization in instances where no specific approving body exists.

MEMBERSHIP

5. The membership of the Management Committee is as follows:
 - a. The three (3) Signing Officers of the organization who hold voting powers for the Management Committee
 - i. President
 - ii. Vice President of Finance and Operations
 - iii. CAO/General Manager
 - iv. Director, People & Culture, on matters relating to Human Resources exclusively
 - b. The voting rights of the Management Committee are limited to these four (4) members and the Committee shall not employ any type of proxy.

DUTIES & RESPONSIBILITIES

6. The Management Committee shall provide oversight and decision-making on:
 - a. Human Resource (HR) functions, including making hiring and termination decisions, handling grievances, and ensuring that all personnel policies comply with legal and ethical standards.
 - b. Risk management by identifying potential risks to the organization's operations, reputation, and finances. The committee will implement strategies to mitigate risks by reviewing contracts, ensuring compliance with legal requirements, and assessing internal controls to minimize exposure to liabilities.
 - c. Emerging issues that impact the organization's strategic direction or operational efficiency.
 - d. Financial decision-making, including drafting a budget to be approved annually by the Board of Directors, setting financial goals, reviewing financial statements, and ensuring the long-term sustainability of the organization through the implementation of sound fiscal policies.
7. Decisions that must be verified by the Management Committee prior to action include but are not limited to¹:
 - a. Financial Decisions with an impact exceeding \$100,000 CAD.
 - b. Major Decisions (that impact various areas of the organization)
 - c. Major Contract Decisions
 - d. External and Internal Hiring Decisions
 - e. Major Changes to Compensation
 - f. Major Projects
 - g. Major Procedural Changes
 - h. Recommendations of the Joint Health & Safety Committee

MEETING & DECISION-MAKING PROCEDURES

8. The Management Committee shall meet weekly, beginning no later than May and ending in April of the following year.
9. The Management Committee is empowered to shorten, postpone or reschedule a meeting. However, the meetings must occur within 2 weeks of each other.

¹ For the purpose of this document "Major" shall be defined as any action that has a substantial impact on the organization's reputation, affects the organization's direction, exposes the organization to risk, opens the organization to liabilities, or would cause substantial change.

10. Management Committee meetings are a collaborative space; all decisions made by the Committee are expected to be approved by a consensus of members present.
11. The Management Committee may invite a non-voting member, or invited guests, to present relevant information to aid in decision-making during a meeting. Non-voting members or guests may act in an advisory manner during the decision-making process, but they cannot vote.
12. The decision-making procedure is as follows:
 - a. Voting member submits a motion to request that something is done (an order) or express an opinion on a matter (a resolution).
 - b. A discussion is held to evaluate all impacts to the organization and to provide context so that the committee may make a well-informed decision.
 - c. Once discussion is exhausted, the voting member calls for a vote.
 - d. The vote shall be decided by consensus of present voting members, unless otherwise indicated in policies or Bylaws.
 - e. A decision is made; the motion is either carried or defeated.
 - f. The decision is clearly recorded in the Management Committee records.
13. All decisions will be disseminated to the Board of Directors, relevant committees, employees and members as necessary to action a decision.

RECORD-KEEPING

16. The Management Committee will use a shared communication system to propose agenda items, track important discussions, record agreed actions, and maintain a record of decisions. Members have the authority to propose agenda items prior to the meeting as well as during the meeting if they identify any urgent matters.
17. A separate record (running document) will be maintained for each year (May to April).
18. In the context of discussing confidential Human Resources information, it is imperative that the committee maintains a formal record of the discussion or decisions made. This record will be stored in a restricted document, in a secure folder, accessible exclusively to Committee members.

AMENDMENTS

19. Amendments to the Management Committee Terms of Reference must be approved by the Management Committee and retained in a record of changes log.
20. The Management Committee will be tasked with reviewing these Terms of Reference every year to ensure that they are serving the organization's needs. A record of amendments to this document will be maintained within a Shared Drive accessible to all voting members of the Management Committee.